You must file an opposition to the proposed dismissal within the time period that is outlined in the letter uploaded on the ACMS state hearing portal to prevent the hearing from getting dismissed. Be sure to counter with your strongest points!

Opposition to Proposed Dismissal

RE: SHN-[redacted]55

1. DOCUMENTED ADMISSION OF DEFAULT (PORTAL ENTRY 05/04/2026)

The Proposed Dismissal alleges there has been "no denial," which is factually contradicted by the official portal record. Exhibit `04292026_lacare_letter.pdf` (uploaded 05/04/2026) contains L.A. Care Health Plan's written admission that they defaulted on the April 26 statutory deadline. Furthermore, the record documents L.A. Care's attempt to execute an illegal, retroactive extension to May 10, 2026, after the initial 30-day window had already expired. A dismissal based on a pending "review status" is invalid when the Health Plan has already codified its default in writing.

2. STATUTORY SUPERIORITY OF AB 3275 (2024)

The Proposed Dismissal's reliance on APL 07-002 (2007) is legally obsolete. Under Assembly Bill 3275, effective January 1, 2026, the mandatory adjudication window for this claim is strictly 30 calendar days.

- **Claim Received:** March 27, 2026 (Verified via USPS Certified Mail).
- **Statutory Deadline:** April 26, 2026.
- **Current Status:** 30 days in statutory default.

Failure to pay, contest, or deny within this 30-day window constitutes an administrative inaction and a "denial by operation of law," compelling immediate appellate review.

3. EXHAUSTION MANDATE PER LASC CASE 26AVSC00192

On May 22, 2026, the Los Angeles Superior Court specifically deferred this matter to administrative exhaustion under Government Code section 905. The Court has legally mandated this venue for adjudication. Dismissing this hearing obstructs a direct judicial directive, effectively denying the claimant access to the mandated administrative remedies necessary to resolve a documented $2,307.00 financial default.

4. CLINICAL URGENCY & LIFE-THREATENING RISK

Portal entries dated 05/03/2026 contain formal Medical Necessity Statements warning that financial barriers to this specific treatment carry a "clinically significant risk of seizures and life-threatening complications." The Department's attempt to delay adjudication for an additional 120 days using superseded 2007 guidelines demonstrates a willful disregard for documented patient safety and life-critical medical necessity.

CONCLUSION

I formally request that this Proposed Dismissal be vacated and a hearing be scheduled immediately. The administrative record already contains the Health Plan's written admission of default; there is no remaining "review" process other than the calculation of interest and penalties mandated under AB 3275.

[redacted] **Date:** 05/27/2026

Nicolas Hernandez